		Moreover, the petition reveals a prior transaction transferring some of Payee's payment rights was approved less than a year ago—i.e., on July 24, 2024—and Payee received $115,000 in connection with that transfer. Payee's declaration in support of that petition stated Payee intended to use that money "to make a long-term plan for myself and my family. I have a baby due soon with my fiancé, who I want to marry to this year. In addition, I intend to use the money to move and purchase a reliable vehicle." (See ROA 11, Ex. 4 to prior petition.) The current petition makes no mention of a fiancé or baby and offers no discussion of how the $115,000 was used in comparison to its proffered intended use. The prior petition and supporting documents also made no mention of the SSI payments Payee now says he was receiving, but have been stopped. There also is no evidence offered as to whether Payee is likely to require future medical care and treatment for the injuries that were the subject of the settlement and what resources are available to cover those expenses. (See Ins. Code § 10139.5(b)(7).) Based on the foregoing, the current record does not appear sufficient to support a finding the transfer is fair and reasonable, and in the best interest of the payee. The court thus will **CONTINUE** the hearing as stated above to allow Petitioner an opportunity to submit additional evidence to address the foregoing concerns. Any additional evidence is due at least 9 court days prior to the hearing. Counsel for Petitioner is ordered to give notice of this ruling.
4.	**Fernhill Owners Community Association No. 1 v. Garra** *2019-01069232*	Before the court is the motion for attorney fees and costs on appeal filed by plaintiff Fernhill Owners Community Association No. 1 (Plaintiff). The motion is **GRANTED** as set forth below. Plaintiff is entitled to fees on appeal pursuant to Civil Code section 5975, subdivision (c), which states "[i]n an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs." Here, as the court already recognized when it granted Plaintiff's initial fee motion, the action sought to enforce the Association's governing documents. Plaintiff also is

		the prevailing party as the Court of Appeal affirmed the judgment in its favor in its entirety. (ROA 438.) "When a contract or a statute authorizes the prevailing party to recover attorney fees, that party is entitled to attorney fees incurred at trial and on appeal." (*Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc.* (2012) 211 Cal.App.4th 230, 250.) Defendant Terese Helene Garra (Defendant) does not dispute Plaintiff may recover reasonable fees and costs on appeal. Plaintiff may thus claim fees under the above statutory provision. The only real dispute presented is the amount of fees to be awarded. The court has broad authority to determine the amount of reasonable fees. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may make its determination of the value of the services rendered without the necessity of expert testimony. (*Id*. at p. 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (*Ibid*.) Courts apply a lodestar method to calculate reasonable attorney fees. (*Meister v. U.C. Regents* (1998) 67 Cal.App.4th 437, 448-49.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48-49.) The court finds the hourly rate requested to be reasonable given counsel's experience and the nature of the dispute. (See Speights Decl., ¶¶ 3, 5.) Defendant does not dispute the reasonableness of counsel's hourly rate. In terms of hours expended, the court has reviewed the billing records provided and determines a 15% reduction is warranted due to excessive and redundant efforts for reviewing the status of appeal and conducting research. The court also determines the hours expended for the instant motion should be reduced from 15 hours to 10 hours. Aside from the foregoing, the remainder of

		the fees claimed appears generally reasonable given the nature of the litigation and procedural history of this case. Defendant has not shown further reduction is warranted. With the foregoing reductions, the fee award is $22,444.12 ($28,022.50 minus $4,203.38 minus $1,375). Plaintiff's unchallenged request for costs in the amount of $1,155.11 is **GRANTED**. (California Rules of Court, rule 8.278; *Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308.) Based on the foregoing, the motion for attorney fees and costs on appeal is **GRANTED** to award Plaintiff fees and costs in the total amount of $23,599.23 ($22,444.12 in fees + $1,155.11 in costs). Plaintiff's request for judicial notice is **GRANTED** as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code §452(d); *Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.) Plaintiff is ordered to submit a proposed judgment in accordance with this ruling. Counsel for Plaintiff is to give notice.
5.	**In re 435 West Center Street #229, Anaheim, CA 92805** *2024-01376871*	Before the court is the motion of claimant Jeffrey Luzzi (Claimant) to claim surplus proceeds of trustee's sale that were deposited with the court by petitioner Clear Recon Corp. This is a renewed motion after the court denied the prior motion on November 21, 2024. The hearing on the renewed motion is **CONTINUED TO MAY 22, 2025, AT 2:00 P.M., IN DEPARTMENT C23**. Although the proof of service Claimant filed (ROA 65)shows the renewed motion was served on a number of entities that may have or may have had claims to the surplus funds, the motion was not served on Umpqua Bank, which may be the only other party potentially asserting a claim to the remaining surplus funds. The motion was served on Sterling Saving Bank DBA Argent Bank, which appears to be Umpqua's predecessor in interest, the court must have sufficient evidence showing the motion was served on all potential claimants identified by the trustee before reaching the merits of the motion.